

26CV02207 Diana Urman vs Ellen Degeneres

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-08-21

Motion: Motion: Protective Order

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Tentative Ruling: Diana Urman vs Ellen Degeneres

Case Number

26CV02207

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 08/21/2026 - 10:00

Nature of Proceedings

Motion: Protective Order

Tentative Ruling

For all of the reasons discussed herein, defendant Ellen DeGeneres' motion of protective order is granted. The parties shall execute and file the stipulation and protective order that is proposed by plaintiff, and is attached to the declaration of Phil Johnson as Exhibit D, no later than August 24, 2026.

Background:

This action commenced on September 12, 2025, by the filing of the Judicial Council Form Compliant by plaintiff Diana Urman against defendants Ellen DeGeneres and Arlene Montesano in Los Angeles County Superior Court related to an automobile collision that occurred on October 16, 2023, in an unincorporated area of Santa Barbara County. The complaint alleges that DeGeneres ran a stop sign and "t-boned" the vehicle that was being driven by plaintiff.

On February 18, 2026, the action was ordered to be transferred to Santa Barbara County, which occurred on April 7, 2026.

Montesano was dismissed on May 8, 2026.

DeGeneres now seeks a protective order limiting plaintiff's use of DeGeneres' deposition testimony, and other discovery, solely to this litigation and restricting such information from being publicly disseminated. DeGeneres has provided a proposed protective order.

Plaintiff opposes the motion arguing that DeGeneres has failed to meet and confer in good faith, has not met her burden in seeking the protective order, and that if the court is inclined to grant the motion the court should apply the model protective order from Los Angeles County Superior Court rather than the order suggested by DeGeneres.

Analysis:

"Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2025.420, subd. (a).)

"When an inspection, copying, testing, or sampling of documents, tangible things, places, or electronically stored information has been demanded, the party to whom the demand has been directed, and any other party or affected person, may promptly move for a protective order. This motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2031.060, subd. (a).)

"When interrogatories have been propounded, the responding party, and any other party or affected natural person or organization may promptly move for a protective order. This motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2030.090, subd. (a).)

Despite plaintiff's arguments to the contrary, the court finds that while the meet and confer efforts by DeGeneres could, and should, have been more thorough and productive, they were sufficient for purposes of bringing the present motion.

"The state has two substantial interests in regulating pretrial discovery. The first is to facilitate the search for truth and promote justice. The second is to protect the legitimate privacy interests of the litigants and third parties. [Citation.] " 'The interest in truth and justice is promoted by allowing liberal discovery of information in the possession of the opposing party. [Citation.] The interest in privacy is promoted by restricting the procurement or dissemination of information from the opposing party upon a showing of ' "good cause." ' [Citations.]" The trial court is in the best position to weigh fairly the competing needs and interests of parties affected by discovery. [Citation.]" (Stadish v. Superior Court (1999) 71 Cal.App.4th 1130, 1145.)

"[T]he burden is on the party seeking the protective order to show good cause for whatever order is sought." (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.)

DeGeneres argues that there is good cause to issue a protective order as it would balance plaintiff's right to discovery with DeGeneres' privacy interests. She argues that a protective order would prohibit plaintiff from disseminating private information, such as DeGeneres' address, for improper, non-litigation-related ends, such as using it in the media or on the internet to cause embarrassment, harassment, or undue burden which could lead to jeopardizing DeGeneres' and her wife's safety due to DeGeneres' celebrity status. DeGeneres and her wife have been subjected to privacy and safety concerns in the past due to their high profile, celebrity status, and involvement in the LGBT community.

The court finds good cause for issuance of the protective order. However, the court agrees with plaintiff that her proposed protective order is more appropriate. The Los Angeles County Superior Court Model Protective Order is mutual and places the proper burden on the objecting party for any de-designation motion. To the extent that DeGeneres contends that the protective order does not cover deposition testimony, she is incorrect. The protective order specifically covers testimony at paragraphs (1)(k), (4)(b), and (6).

Judges

Judge Donna D. Geck

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